

FEDERAL MARITIME COMMISSION

DOCKET NO. 24-01

**Visual Comfort & Co.
v.
COSCO Shipping Lines Co. Ltd.**

RESPONDENT'S FIRST MOTION TO COMPEL PRODUCTION OF DOCUMENTS

Respondent COSCO Shipping Lines Co., Ltd. ("COSCO" or "Respondent") hereby moves pursuant to 46 C.F.R. 502.147(a)(6) and 502.150 to compel Complainant Visual Comfort & Co. ("VCC" or "Complainant") to produce documents thus far withheld,¹ as identified below.

INTRODUCTION

As the Presiding Officer is aware from the conference held on May 16, 2024, production of documents has been delayed on both sides. Since this conference, Counsel for COSCO has conferred with Counsel for VCC and has provided VCC a specific list of deficiencies (COSCO First Notice of Deficiencies) (**Attachment C**). VCC has not yet responded to the list of deficiencies, and we have not heard anything further from Counsel for VCC since the meet and confer call on Tuesday, May 21, 2024.²

¹ COSCO is concurrently filing a motion to compel adequate responses to COSCO's interrogatories and requests for admission.

² VCC responded to our Notice of Deficiencies as we were going to press with these Motions, and we have not been able to review it carefully, but it suggests the deficiencies may be able to be resolved by Counsel. We nevertheless file the motion to have it on the record before May 31, as ordered by the Presiding Officer. We expect that some, perhaps many, maybe all, of our

We hope that further discussions may resolve the matter in dispute without intervention from the Presiding Officer but given the requirement that motions to compel be filed before May 31, 2024, we find it necessary to put the insufficiencies of VCC's response on record and ask the Presiding Officer to order timely production, consistent with the schedule going forward, as determined by the Presiding Officer.

Before discussing the specific COSCO requests for documents ("RFD"), we observe that, as a general matter, VCC has not yet produced any documents that are designated as responsive to any specific RFD. Although VCC did produce five documents, it did not, despite COSCO's request, specify what RFD those few documents correspond to.

SPECIFIC REQUESTS FOR DOCUMENTS

In this section, COSCO addresses the specific document requests as to which Complainant has, to date, unreasonably objected or insufficiently responded. We ask the Presiding Officer to order that Complainant produce the responsive documents fully and in a timely manner.³

1. **RFD1** requests VCC to produce "copies of all documents used to respond to any Interrogatory above." VCC has stated that "it will produce non-privileged documents used to respond to any Interrogatory above once a protective order is in place." A protective order (or at

complaints may yet be satisfied by VCC, and we will of course withdraw any discovery responses that no longer need the attention of the Presiding Officer.

³ As required by the Commission's Rules, Respondent's relevant requests and Complainant's responses are set out verbatim and in full in **Attachment A**, Certificates of Attempts to Confer (**Attachment B**); Notice of Deficiencies served on VCC on May 24, 2024 (**Attachment C**); and the original Certificate of Service of COSCO's Initial Request for Documents (**Attachment D**) are also attached as per the Commission's Rules.

least a stipulation) is currently in place, so we expect prompt production of the documents on a timetable set by the Presiding Officer.

2. RFD2 requests VCC to produce “copies of all documents identified in response to any interrogatory above.” For the most part, as with RFD1, VCC has stated that “it will produce non-privileged documents identified in response to any Interrogatory above once a protective order is in place.” So as with RFD1, we anticipate prompt production of the documents.

VCC also “objects to this Request to the extent it requests documents which are publicly available and/or also already within Respondent’s possession, access, or control.” Counsel for COSCO will work with Counsel for VCC to reduce unnecessary production. But as a general rule, it is important for two reasons for COSCO to seek, and VCC to produce, documents that may (or may not) be in COSCO’s possession. First, production by VCC confirms that the document was in VCC’s files. Otherwise, time will be needed to establish that fact in depositions of multiple VCC custodians. Second, a document produced by an opposing party is effectively self-authenticating.

3. RFD3 requests VCC to produce “all documents upon which Complainant intends to rely to support any allegation or Count of its Complaint.” As with RFD1 and RFD 2, VCC states that “it will produce non-privileged documents responsive to this request above once a protective order is in place.” So as with RFD1 and RFD2, we anticipate prompt production of the documents.

4. RFD4 requests VCC to produce “all bills of lading, invoices, receipts, booking confirmations, NSAs, NRAs, contracts, agreements, correspondence, or any other documents relating to any payments VCC made or any invoices VCC received for any of the Charges in the Complaint.” VCC’s response is rather equivocal, stating that, “[s]ubject to and without waiving

the foregoing specific and general objections, VCC states that it will produce non-privileged documents responsive to this request once a protective order is in place.” As with prior RFDs, we anticipate prompt production of the documents. We are confused, however, by the reference to unspecified “specific and general objections.” We assume that this does not mean that Counsel for VCC intends to withhold any non-privileged documents based on new objections.

5. RFD5 requests VCC to produce “all bills of lading, invoices, and other shipping documents relating to all shipments that Complainant alleges it made as an alternate transportation arrangement for shipments allegedly declined by Respondent.” VCC responds as it did to RFD4, so we incorporate our comment on RFD4 by reference.

6. RFD6 requests VCC to produce “copies of any Service Contract Complainant alleges it had with Respondent.” VCC responds as it did to RFD4, so we incorporate our comment on RFD4 by reference.

7. RFD7 requests VCC to produce “all correspondence between Complainant and Respondent relating to any Service Contract Complainant alleges it had with Respondent.” VCC responds as it did to RFD4, so we incorporate our comment on RFD4 by reference.

8. RFD8 requests VCC to produce “all documents relating to Complainant’s claim for, and calculation of, damages set out in Allegation 52.” VCC responds as it did to RFD4, so we incorporate our comment on RFD4 by reference.

9. RFD9 asks VCC to produce “all documents identified in Complainant’s Initial Disclosures.” VCC responds as it did to RFD4, so we incorporate our comment on RFD4 by reference.

10. RFD10 requests VCC to produce “all documents relating to Complainant’s attempts to resolve this issue informally through COSCO’s FMC-approved process for seeking waiver/credit or refund of charges.”

11. RFD11 asks VCC to produce “all internal and external communications made by VCC with respect to the Charges VCC alleges it paid to COSCO.” VCC responds as it did to RFD4, so we incorporate our comment on RFD4 by reference.

12. RFD12 asks VCC to produce “all internal and external communications made by VCC with respect to responsibility for the payment of the Charges VCC alleges it paid COSCO.” VCC responds as it did to RFD4, so we incorporate our comment on RFD4 by reference.

13. RFD13 asks VCC to produce “all internal and external communications made by VCC with respect to responsibility for the payment of the Charges VCC alleges it paid any payee other than COSCO.” VCC responds as it did to RFD4, so we incorporate our comment on RFD4 by reference.

14. RFD14 asks VCC to produce “all contracts and agreements VCC had for the transportation of the shipments in question.” VCC responds as it did to RFD4, so we incorporate our comment on RFD4 by reference.

ARGUMENT

FMC Rule 150 authorizes the Presiding Officer to compel the production of documents where the party responding to a request for production has failed to respond, has made an inadequate response, or has hidden behind specious objections. 46 CFR 502.150. As detailed above, Complainant has not yet provided any documents identified as responsive to a specific COSCO RFD. We note that VCC has not objected to any of the document requests on grounds of relevance (or lack thereof) or burden. Quite to the

contrary, VCC has stated that it will provide documents, if any exist, responsive to COSCO's requests. Accordingly, now that a stipulation of confidentiality is in place, the only immediate questions are: (i) when VCC expects to produce the documents, and (ii) whether VCC will, as it has not thus far, identify to which RFD specific documents respond, as required by the FMC Rules. We are happy to discuss with VCC Counsel expected dates for production by VCC (and COSCO), subject to whatever revised Schedule the Presiding Officer may set.

CONSULTATION

The consultation between Counsel for VCC and Counsel for COSCO is described in the Introduction. We expect such consultation to be an ongoing matter.

CONCLUSION AND REQUESTED RELIEF

Based on the foregoing, Respondent respectfully requests that the Presiding Office issue an Order requiring the timely and complete production of documents responsive to Respondent's requests.

DATED: May 30, 2024

Respectfully submitted,
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ATTORNEYS FOR RESPONDENT
COSCO Shipping Lines Co., Ltd.

CERTIFICATE OF SERVICE

I certify that on the 30st day of May, 2024, a true and correct copy of the foregoing **Motion to Compel and Attachments** were served by email on all counsel of record in accordance with 46 CFR Part 502 and the Commission's Order of May 12, 2020.

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